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SAVINGRAM

FROM: Attorney General's Chambers

T. Tombale-Fohlani
For/ Attorney General

TEL: 3613742

TO: Permanent Secretary
Ministry of Communications
and Innovation

MINISTRY OF COMMUNICATIONS & INNOVATION
RECORDS MANAGEMENT UNIT
CONFIDENTIAL
02 JUN 2025
RECEIVED BY:
SIGNATURE: TIME:
P/BAG 00414 GABORONE

REF: AGC 9/2/677 I (2)

30th May, 2025

RE: CYBERSECURITY BILL, 2025

Reference is made to your savingram C/MCKT 6/4/42 II (42), dated 5th November, 2024.

Kindly note that we have drafted the Bill in accordance your instructions. However, please note the following issues:

1. You have proposed for there to be several bodies regulating cybersecurity such as the Botswana Cybersecurity Centre of Excellence, National Cybercrime Commission, NCC Secretariat, National competent authority and the National Cybersecurity Commission. What role will all these other bodies be playing in the regulation of cybersecurity issues? We advice that if you create so many bodies or organisations under one law, you risk the duplication of functions.

2. Under clause 11 (10) of your instructions, you have provided that you can refuse to issue a licence to a business person who is not fit and proper, how is this going to be determined?

3. Please provide us with the details on which services shall be licensable services under the law.

4. Kindly clarify on the definition of "essential services" under clause 2 of your instructions. Is this definition meant to be different from the one provided under the Trade Disputes Act (Cap. 48:02)?

BOTSWANA COMMUNICATIONS REGULATORY AUTHORITY
RECORDS
03 JUN 2025
TEL: 3957755 FAX: 3947975
PRIVATE BAG 00495 GABORONE BOTSWANA

5. Under clause 7 (3) (u), you propose that there will be issued licences, permit, permission, concession, authorities, e.t.c. However, you have only provided for the procedure on the issuance of licences. Under what circumstances will permits, permissions, concessions and authorities be issued?

6. Kindly confirm whether you agree with the penalties that we have provided for in the Bill.

7. Kindly provide us with the following definitions, "critical sector", "digital technology", digital service" and digital product".

8. Kindly confirm whether there are going to be any consequential amendments to this law such as in the Cybercrime and Computer Related Crimes Act, the Communications Regulatory Authority Act or any other law that may be impacted by the enactment of this law. Kindly note that if there are any consequential amendments to be made, they need to be done as soon as possible.

Please find enclosed a copy of the draft Bill for your consideration.

Thank you.

Draft
T. T.F.
30.05.2025

Bill No. of 2025

CYBERSECURITY BILL, 2025
(Published on , 2025)

MEMORANDUM

1. A draft of the above Bill, which is intended to be presented to the National Assembly is set out below.

2. The objective of the Bill is to enact the Cybersecurity Act which is intended to ensure the effective implementation of the National Cybersecurity strategies and policies in Botswana, prevent, mitigate and respond to cybersecurity threats and incidents effectively and efficiently, to establish and empower the cybersecurity institutional framework to provide a safe and secure cybersecurity environment while protecting the Critical National Information Infrastructure.

3. Part I of the Bill provides for preliminary matters, such as the interpretation of the terms used in the Bill and that the law will not apply to classified information held by the Botswana Police Service, the Botswana Defence Force, the Directorate of Intelligence and Security, the Drug Enforcement Agency, the Directorate of Corruption and Economic Crime and the Botswana Prisons Service.

4. Part II of the Bill provides for the establishment of the National Cybersecurity Commission which shall be a body corporate and shall be responsible for the promotion of cybersecurity and cyber resilience in Botswana. The Part further provides for the regulatory and administrative functions of the Commission.

5. Part III of the Bill provides for the establishment of the Board of the Commission as the governing body of the Commission and sets out its functions. The Part also provides for meetings and proceedings of the Board and other procedures that the Board will undertake in its functions.

6. Part IV of the Bill provides for the conduct of meetings and proceedings of the Board of the Commission, whilst Part V provides for the office of the Chief Executive and staff of the Commission. Part VI further provides for financial provisions relating to the Commission.

7. Part VII of the Bill provides for the licensing of cybersecurity service providers. The licensable cybersecurity service providers include services for penetration testing, security operations centre, information security risk assessment, e.t.c. The licensing procedures include provisions on the renewal of licences the period within applications for licences shall be assessed, e.t.c.

8. Part VIII of the Bill provides for the designation of information or information infrastructure relevant to a critical sector as a critical information or critical national information infrastructure, categories of critical information and critical national information infrastructure, the registration of critical information and critical national information infrastructure. The Part further provides for the withdrawal of designation of a critical information and critical national information infrastructure where the information or national information infrastructure does not meet the requirements to be designated as such. The Part further provides for the auditing of critical information and critical national information infrastructure by the Commission and the procedure that the Commission will adopt where there is non-compliance to auditing requirements.

9. Part IX of the Bill provides for the appointment of the Botswana Computer Security Incident Response Teams as the single point of contact for cybersecurity incident reporting, monitoring of cybersecurity threats and incidents, assess and coordinate the work of sectoral cyber incident response teams, e.t.c. The Part further provides for the appointment of sectoral cyber incidents response teams, which teams shall collect and collate cybersecurity incidents and coordinate responses to cybersecurity incidents within the specific sectors. The Part further provides for the Commission to establish a cybersecurity incident monitoring and response system as well as an early warning system in relation to human initiated risks that are likely to undermine the cybersecurity in the country.

10. Part X of the Bill provides for the establishment of the Central Monitoring and Coordination Centre, which shall be managed, controlled and operated by the Department responsible for Government communications. The Centre shall be responsible for authorised interceptions of communications in Botswana. The Part further prohibits the interception of or access and use of any communications, the use, manufacturing or possession of an interception device without the authority of the Commission. The Part further provides for the registration of interception devices by persons authorised to use or possess such devices. The Part further empowers law enforcement officers to make lawful interceptions of communications where the officers have reasonable ground to believe that an offence is likely to be committed or is being committed.

11. Part XI of the Bill provides for the obligation of the Commission to cooperate with international organisations or institutions on cybersecurity matters, within or outside Botswana. The Part further provides for the designation of the Botswana Computer Security Incident Response Team as the 24/7 contact point to tackle cybersecurity threats and incidents.

12. Part XII of the Bill provides for Miscellaneous Provisions that include the establishment of a cybersecurity risk register by the Commission, which shall record the personal data of the owners of critical information and critical national information infrastructure, identified and potential cybersecurity risks, the power of the Commission to direct that cybersecurity service providers, persons who own or operates critical information and critical national information infrastructure to provide it with relevant information for the purposes of ensuring the cybersecurity of Botswana. The Part further provides for the Commission to issue codes of practice and standards that may include incident reporting, cyber resilience, risk assessments of critical information and critical national information infrastructure. The Part further provides for the exemption of a person

or class of persons, for a limited or unlimited period of time, from the requirements of Parts VII and VIII of the Act.

DAVID TSHERE
Minister of Communications and Innovation

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A BILL
-entitled-

An Act to provide for the establishment of structures to promote cybersecurity and capacity building in Botswana; to regulate and promote the development of cybersecurity activities in the country; to provide for the identification and declaration of critical information infrastructures and measures to protect critical information infrastructures; to provide for the governance and securing of network and information systems essential for the functioning of society and state and local authorities' network and information systems, liability and supervision as well as the basis for the prevention and resolution of cyber incidents; and for matters connected or incidental therewith.

Date of Assent:
Date of Commencement:
ENACTED by the Parliament of Botswana.

PART I – *Preliminary*

Short title and commencement

1. This Act may be cited as the Cybersecurity Act 2025, and shall come into operation on such date as the Minister may, by Order published in the *Gazette*, appoint.

Interpretation

2. In this Act, unless the context otherwise requires –

"Board" means the Board of the Commission established under section 9;

"Chief Executive Officer" means the Chief Executive Officer of the Commission, appointed under section 24;

"Commission" means the National Cybersecurity Commission established under section 5;

"computer system" means a set of integrated devices that input, output, process and store data and information, including the internet;

"controller" means a person who controls or is responsible for critical information or critical information infrastructure that is registered under this Act;

"critical information" means computer data that relates to public safety, public health, economic stability, national security,

international stability and the sustainability and restoration of critical cyberspace including –

(a) personal data that is managed, stored or transmitted through critical national information infrastructure or processed by a controller;

(b) information relating to any research and development in relation to critical national information infrastructure;

(c) information needed to operate critical national information infrastructure; or

(d) information relating to risk management and business continuity in relation to critical national information infrastructure;

"critical national information infrastructure" means information and communication infrastructures, whether physical or virtual, which are essential for the maintenance of vital societal functions, including –

(a) public health and safety;

(b) national security;

(c) economic stability; and

(d) the social well-being of people, the incapacity, disruption or destruction of which would significantly –

(i) cause the interruption of life sustaining services, including but not limited to the supply of water, health services and energy,

(ii) have a debilitating effect on the economy,

(iii) result in massive casualties or fatalities, or

(iv) cause failure or substantial disruption of the money market.

"cyber resilience" means the ability to anticipate, withstand, recover from and adapt to adverse conditions, stresses, attacks or compromises on systems that use or are enabled by cyber resources;

"cybersecurity" means the ability of internet-connected computers or computer systems or electronic systems or electronic systems or information systems through –

(a) tools;

(b) policies;

(c) security concepts;

(d) security safeguards, guidelines, risk management approaches, actions, training and technologies,

to resist, at a given level of confidence, any action that compromises the availability, authenticity, integrity or confidentiality of stored or transmitted or processed data or the related services offered by, or accessible via, those computers, information or computer systems;

"cybersecurity service" means a service provided by a person or entity, that is intended primarily for or aimed at ensuring the cybersecurity of or safeguarding of a computer, computer system or information system belonging to another person or entity, and includes –

(a) assessing, testing or evaluating the cybersecurity of a cybersecurity service provider's computer, computer or information system by searching for

vulnerabilities in, and compromising, the cybersecurity defences of the computer or computer or information system;

(b) conducting a forensic examination of a cybersecurity service provider's computer, computer or information system;

(c) investigating and responding to a cybersecurity incident that has affected a cybersecurity service provider's computer, computer system by conducting a thorough scan and examination of the computer, computer or information system-

(i) to identify and remove elements relating to,

(ii) identify the root cause of the cybersecurity incident, and

(iii) which involves circumventing the controls implemented in the computer, computer or information system;

(d) conducting a thorough examination of a cybersecurity service provider's computer, computer or information system to detect any cybersecurity threat or incident that may have already penetrated the cybersecurity defences of the computer, computer or information system, and that may have evaded detection by conventional cybersecurity solutions;

(e) designing, selling, importing, exporting, installing, maintaining, repairing or servicing of one or more cybersecurity solutions;

(f) monitoring of the cybersecurity of a cybersecurity service provider's computer, computer system by acquiring, identifying and scanning information that is stored in, processed by, or transmitted through the computer, computer system or information system for the purpose of identifying cybersecurity threats to the computer, computer system or information system;

(g) maintain control of the cybersecurity of a cybersecurity service provider's computer, computer or information system by effecting management, operational and technical controls, for the purpose of protecting the computer, computer or information system against any unauthorised effort to adversely affect its cybersecurity;

(h) assessing or monitoring the compliance of a cybersecurity service provider with the service provider's cybersecurity policy;

(i) providing advice in relation to cybersecurity solutions, including –

(i) advice on a cybersecurity program, or

(ii) identifying and analysing cybersecurity threats and providing advice on solutions or management strategies to minimise the risk posed by cybersecurity threats;

(j) providing advice in relation to any practices that can enhance cybersecurity; and

(k) providing training or instruction in relation to any cybersecurity service, including the assessment of the training,

instruction or competencies of another person in relation to any such activity;

"cybersecurity service provider" means a person licensed under the Act to provide a cybersecurity service;

"cybersecurity risk register" means a catalogue or database of cybersecurity threats which are kept and maintained by the Commission in terms of section 71;

Cap. 43:11

"data" has the meaning assigned to it under the Data Protection Act;

"device" means a unit of physical or virtual hardware or equipment that provides one or more computing functions and includes –

(a) a computer program;

(b) an application;

(c) a component of a computer system;

(d) a computer storage component;

(e) an input or output device; or

(f) an apparatus,

which can be used to intercept a wire or electronic communication;

Cap. 72:03

"electronic communication" has the same meaning assigned to it under the Communications Regulatory Authority Act;

"electronic communication service provider" means a person licensed to provide an electronic communication service under the Communications Regulatory Authority Act;

Cap. 48:02

"essential service" has the same meaning assigned to it under the Trade Disputes Act;

"geolocation" means the process or technique of identifying the geographical location of a person or device by means of digital information processed through the internet;

"hosting" means the service of storage of data or providing storage of computing resources for one self or others;

"information system has the same meaning assigned to it under the Electronic Communications and Transactions Act;

"interception" means an act by a person who is not party to an electronic communication of listening to, monitoring, viewing, reading or recording a private communication in transit, without the knowledge of the person making and receiving the communication, whether such communication is done in real time or otherwise between –

(a) persons;

(b) a person and a device; or

(c) devices;

"law enforcement officer" means –

(a) a police officer;

(b) an officer of the Directorate of Corruption and Economic Crime;

(c) an officer of the Drug Enforcement Agency;

(d) an officer of the Directorate of Intelligence Service; and

Cap. 43:12

(e) an officer of the Botswana Defence Force; and

(f) any other person that the Minister may by Order published in the *Gazette*, designate for purposes of this Act;

"national cyber emergency" means a cybersecurity incident occurring in two or more critical national information infrastructure operators in two distinct sectors; and

"risk" means any reasonably identifiable circumstance or event, having a potential adverse effect on the security of network and information systems.

Application of Act

3. (1) This Act applies to the governance and securing of network and information systems essential for the functioning of the society, including the liability, supervision and the basis for the prevention and resolution of cyber incidents.

(2) This Act shall not apply to the processing of classified information held by –

(a) the Botswana Police Service;

(b) the Botswana Prisons Service;

(c) the Botswana Defence Force;

(d) the Directorate of Corruption and Economic Crime;

(e) the Directorate of Intelligence and Security; and

(f) the Drug Enforcement Agency.

(3) For the purposes of this section, "classified information" has the same meaning assigned to it under the Intelligence and Security Service Act.

Cap. 23:02

Relationship with other Acts

4. In the event of a conflict or inconsistency between the provisions of this Act and any other law on cybersecurity, the provisions of this Act shall take precedence, except where such conflict or inconsistency is with the provisions of the Data Protection Act.

PART II – *National Cybersecurity Framework*

Establishment of National Cybersecurity Commission

5. (1) There is hereby established a body to be known as the National Cybersecurity Commission.

(2) The Commission shall be a body corporate with a common seal, capable of suing and being sued in its own name and, subject to the provisions of this Act, of doing or performing all such acts or things as bodies corporate may, by law, do or perform.

Objectives of Commission

6. The objectives of the Commission shall be to promote cybersecurity and cyber resilience, ensuring the effective application of and compliance with this Act.

Regulatory functions of Commission

7. (1) The regulatory functions of the Commission shall be to –

(a) establish codes of practice, policies and standards for cybersecurity and the provision of cybersecurity services, and monitor compliance with the codes of practice and standards by the public and private sector owners of critical information and critical national information infrastructure;

(b) grant licenses and registration certificates for services regulated under the Act;

(c) develop and implement a National Cybersecurity Strategy, including programmes, policies and other cybersecurity initiatives;

(d) monitor cybersecurity threats, whether such cybersecurity threats occur in or outside Botswana;

(e) oversee the functions of any institution established for the purposes of ensuring and promoting cybersecurity;

(f) ensure safe, secure, efficient and affordable cybersecurity services and products throughout Botswana;

(g) identify and designate cybersecurity providers and to regulate owners of critical national information infrastructure with regard to the cybersecurity of the critical national information infrastructure;

(h) monitor the performance of the regulated cybersecurity sector and licensed cybersecurity service providers;

(i) establish and maintain a cybersecurity risk register of –

(i) identified and potential risks,

(ii) the levels and impact of risks, and

(iii) persons licensed to carry out cybersecurity activities; and

(j) take such other steps and to perform such other acts as may be required for the achievement of its objects and the proper performance of its functions and duties in terms of the Act.

Administrative functions of Commission

8. The Commission shall –

(a) prepare the annual plans and annual budget for the Commission;

(b) require internal periodic assessment of cybersecurity service providers;

(c) prepare and submit periodic reports concerning the state of national cybersecurity, in consultation with the Botswana Computer Security Incident Response Team, for submission to the Minister;

(d) conduct a national risk assessment of the activities of cybersecurity service providers;

(e) advise the Government or any other public institution on national policies in respect of cybersecurity, including cyber resilience and ways of reducing cybersecurity risks; and

(f) to perform such other administrative functions and duties as may be conferred on the Commission under this Act.

Seal of Commission

9. (1) The seal of the Commission shall be such device as may be determined by the Commission and shall be kept by the Secretary.

(2) The seal of the Commission shall be authenticated by the signature of the Chief Executive Officer and the Secretary.

(3) In the absence of the Chief Executive Officer, the person performing the functions of the Chief Executive Officer may authenticate the seal in his or her place and, in the absence of the Secretary, the person performing the functions of the Secretary may authenticate in his or her place.

(4) The Chief Executive Officer may, in writing, delegate to another employee of the Commission his or her power to authenticate the seal.

(5) The Secretary may, in writing and with the approval of the Chief Executive Officer, delegate to another officer of the Commission his or her power to authenticate the seal.

(6) A document issued by the Commission and sealed with the seal of the Commission, which seal is authenticated in the manner provided by this section, shall be received and taken to be a true instrument without further proof unless the contrary is shown.

PART III – *Board of the Commission*

Establishment of Board

10. There is hereby established a Board of the Commission, which shall be the governing body of the Commission and shall be responsible for the direction of the affairs and operations of the Commission.

Membership of Board

11. (1) The Board shall consist of seven members appointed by the Minister, and the members shall be appointed from amongst persons with expertise in –

(a) information and communication technology;

(b) cybersecurity policy or regulation;

(c) law;

(d) economics;

(e) engineering;

(f) financial accounting; and

(g) public policy.

(2) The Board shall be responsible for the general control of the performance and management of the affairs of the Commission, and without derogating from the generality of this provision, the Board shall –

(a) determine the general performance of the Commission;

(b) determine corporate policy and provide strategic direction for giving effect to the objects and purposes of the Act;

(c) advise the Commission to amend, review or formulate cybersecurity related policies and strategies, where necessary;

(d) establish, implement, assess and improve management systems that are aligned with the goals of the Commission;

(e) determine and recommend to the Commission, any fees necessary for any licensed activity to be carried out under this Act;

(f) ensure compliance with international instruments or agreements relating to cybersecurity, to which Botswana is a party to; and

(g) do such other things as are provided by this Act or as may be necessary for the proper implementation of this Act.

(3) The Chief Executive Officer shall be an *ex-officio* member of the Board.

(4) The Minister shall appoint the Chairperson of the Board from amongst the members appointed under subsection (1).

Directions by Minister

12. (1) The Minister may give to the Board written directions, of a general or specific nature, regarding the exercise of its powers, which directions shall not be inconsistent with this Act or with contractual or other legal obligations of the Board.

(2) The Board shall give effect to the Minister's directions given in accordance with subsection (1).

Tenure of office

13. (1) A member shall hold office for such period, not exceeding five years, as may be specified in the instrument appointing him or her.

(2) A member whose office expires shall be eligible for re-appointment for another term not exceeding five years.

Disqualification, removal and resignation of members

14. (1) A person shall not qualify for appointment as a member or continue to hold office as a member where he or she –

(a) is at the time of appointment, a member of the National Assembly, a councillor or a member of *Ntlo ya Dikgosi*;

(b) has, in terms of a law in force in any country –

(i) been adjudged or otherwise declared bankrupt and has not been discharged,

(ii) made an assignment to, arrangement or composition with his or her creditors, which has not been rescinded or set side;

(c) has, within the period of 10 years immediately preceding the date of his or her appointment, been convicted -

(i) of a criminal offence within Botswana,

(ii) outside Botswana, of an offence which if committed in Botswana, would have been a criminal offence,

and sentenced by a court of competent jurisdiction to imprisonment for six months or more without the option of a fine, whether that sentence has been suspended or not, and for which he or she has not received a free pardon;

(d) has, within a period of 10 years immediately preceding the date of his or her appointment, been disqualified or suspended by a competent authority from practising a profession on grounds of misconduct or negligence; or

(e) is a holder of a licence or has an interest in a licence issued under this Act.

(2) The Minister may, in writing, suspend from office, a member against whom criminal proceedings are instituted for an offence in respect of which a sentence of imprisonment without the option of a fine may be imposed, and whilst that member is so suspended, he or she shall not carry out any duties under this Act nor be entitled to any remuneration or allowances as a member of the Board.

(3) The Minister shall remove a member from office, if the member -

(a) has become subject to a disqualification under subsection (1);

(b) is absent without reasonable cause from three consecutive meetings of the Board of which he or she has had notice;

(c) has been found to be physically or mentally incapable of performing his or her duties efficiently, and a medical doctor has issued a certificate to that effect;

(d) contravenes the provisions of this Act or otherwise misconducts himself or herself to the detriment of the objectives of the Board;

(e) has failed to comply with the provisions of sections 20 and 21; or

(f) has been convicted of an offence under this Act, or under any other Act for which he or she is sentenced to imprisonment for a term of six months or more without an option of a fine.

(4) For purposes of subsection (1) *(d)*, "misconduct" includes any act, done by a member without reasonable excuse, which –

(a) amounts to failure to perform in a proper manner, any duty imposed on him or her as such;

(b) is prejudicial to the efficient carrying out of the functions of the Commission; or

(c) tends to bring the Authority into disrepute.

(5) A member may resign from the Board by giving 30 days' notice, in writing, to the Minister.

Vacation of office

15. A member shall vacate his or her office and his or her office shall become vacant –

(a) if he or she becomes disqualified in terms of section 13 to hold office as a member of the Board;

(b) upon his or her death;

(c) upon the expiry of such time as the Minister may specify, in writing, notifying the member of his or her removal from office by the Minister;

(d) upon the expiry of one month's notice, in writing, to the Chairperson, of his or her intention to resign from office; or

(e) if he or she is summarily dismissed by the Minister on the grounds of contravening the provisions of this Act.

Filling of vacancies

16. (1) Where the office of a member becomes vacant before the expiry of the member's term of office, the Minister shall appoint another person to be a member in place of the member who vacates office, until the expiry of a period during which such member would have otherwise continued in office.

(2) Subsection (1) shall not apply where the remainder of the period for which the member whose office has been vacated would otherwise have held office is less than six months.

Remuneration and allowances

17. A member shall be paid such remuneration, travelling expenses and other expenses and allowances, incurred in connection with his or her services on the Board, if any, as the Minister may determine.

PART IV – *Meetings and Proceedings of Board*

Meetings of Board

18. (1) Subject to the provisions of this Act, the Board shall regulate its own proceedings.

(2) The Board shall hold its first meeting on such date and at such place as the Minister may fix and thereafter the Board shall meet at least once in every three months.

(3) Upon giving notice, in writing, of not less than 14 days, a meeting of the Board may be called by the Chairperson, but if the urgency of any particular matter does not permit the giving of such notice, a special meeting may be called upon the giving of a shorter notice.

(4) The notice referred to under subsection (3) shall state –

(a) the place and time for the meeting; and

(b) the agenda for the meeting.

(5) There shall preside at any meeting of the Board–

(a) the Chairperson; or

(b) in the absence of the Chairperson, the Vice-Chairperson

Election of Vice-Chairperson

19. (1) The members shall, at the first meeting of the Board, elect from among their number, a Vice-Chairperson.

(2) The Chairperson and Vice-Chairperson shall hold office for a period of not more than three years.

(3) On the expiry of the terms of office of the Chairperson or the Vice-Chairperson, or where the Chairperson or the Vice-Chairperson vacates office, a new Chairperson shall be appointed by the Minister and a new Vice-Chairperson shall be elected by the members from among their number at the next meeting of the Board or as soon thereafter as may be convenient.

(4) The Chairperson or Vice-Chairperson may vacate his or her office as such even though he or she remains a member.

(5) The Vice-Chairperson shall exercise the functions of the Chairperson during the period that the Chairperson is absent or unable to act as Chairperson.

Quorum and proceedings at meetings

20. (1) The quorum at any meeting of the Board shall be a simple majority of the members.

(2) A decision of the Board on any question shall be by the majority of the members present and voting at the meeting and, in the event of an equality of votes, the member presiding shall have a casting vote in addition to that member's deliberative vote.

(3) A decision of the Board shall not be rendered invalid by reason of a vacancy on the Board or the fact that a person who was not entitled to sit as a member did so sit.

(4) The Board may invite any person whose presence it deems necessary, to attend and participate in the deliberations of a meeting of the Board, but such person shall have no vote.

Disclosure of interest

21. (1) If a member is present at a meeting of the Board or any committee of the Board at which any matter –

(a) in which, an immediate member of his or her family is directly or indirectly interested in a private capacity; or

(b) in which the member is directly or indirectly interested in a private capacity,

is the subject of consideration, the member shall, as soon as practicable after the commencement of the meeting, disclose such interest and shall not, unless the Board otherwise directs, take part in any consideration or discussion of, or vote on any question touching on the matter.

(2) A disclosure of interest made under subsection (1) shall be recorded in the minutes of the meeting at which it is made.

(3) Where a member fails to disclose his or her interest in accordance with subsection (1) and a decision by the Board is made benefitting such member, or immediate family member of the member, such decision shall be null and void to the extent that it benefits such member or his or her immediate family member.

(4) For the purposes of this section, "immediate family member" means a spouse, son, daughter, sibling or parent.

(5) A member who fails to comply with the provisions of subsection (1) commits an offence and is liable to a fine not exceeding P30 000, or to imprisonment for a term not exceeding six months, or to both.

Confidentiality

22. (1) A member and any other person assisting the Board shall observe and preserve the confidentiality of all matters coming before the Board, and such confidentiality shall subsist even after the termination of their terms of office or their mandates.

(2) Any member or any person to whom confidential information is revealed through working with the Board shall not disclose that information to any other person unless he or she is required to do so in terms of any written law or for purposes of any judicial proceedings.

(3) Any member or any other person who contravenes the provisions of this section commits an offence and is liable to a fine not exceeding P50 000, or to

imprisonment for a term not exceeding six months, or to both.

Committees of Board

23. (1) The Board may, for the purpose of performing the functions of the Commission, establish such committees as it considers appropriate, and may delegate to any committee, such functions as it considers necessary.

(2) The Board may appoint to the committees constituted under subsection (1), such number of persons, from amongst the members, as it considers appropriate, to be members of such committees and such persons shall hold office for such period as the Board shall determine.

(3) Subject to any direction given by the Board, a committee may regulate its own procedure.

(4) The meetings of a committee shall be held at such times and places as the committee may determine, or as the Board may direct.

(5) The chairperson of each committee, appointed by the Board from amongst its members, shall cause to be recorded and kept, minutes of all the proceedings of the meetings of the committee and keep the Board informed of the committee's activities, in writing.

(6) A member of a committee shall be paid such remuneration and other allowances, if any, from the funds of the Commission, as the Minister may determine.

(7) The provisions of sections 13, 14, 15, 21, and 22 shall, with the necessary modifications, apply to a member of a committee.

Co-opted members

24. (1) The Board may co-opt any person to attend a meeting of the Board or otherwise assist the Board with its deliberations, and such person shall not have any voting or any rights on the Board.

(2) The provisions of sections 20 and 21 shall, with necessary modifications, apply to co-opted members.

PART V – *Chief Executive Officer and staff of the Commission*

Chief Executive Officer

25. (1) There shall be a Chief Executive Officer of the Commission, who shall be appointed by the Minister, in consultation with the Board, and on such terms and conditions as may be specified in the instrument of appointment.

(2) The Chief Executive Officer shall be responsible to the Board.

(3) The Chief Executive Officer shall not, while in the employment of the Commission engage in paid employment outside the duties of his or her office in the Commission.

(4) The Chief Executive Officer shall hold office for a maximum period of five years on such terms and conditions as may be specified in the instrument of appointment, and may be considered for re-appointment for a further term not exceeding five years.

(5) The Chief Executive Officer shall, subject to the directions of the Board on matters of policy, be responsible for -

(a) the supervision of the day-to-day affairs of the Commission;

(b) ensuring that the Commission is carrying out the functions and duties placed upon it in terms of this Act;

(c) running of the Commission on sound commercial and financial principles in accordance with policies and decisions made by the Board;

(d) controlling the resources and operations of all the services under the Commission

(e) implementing the decisions of the Board; and

(f) carrying out any duty that may be conferred on him or her by the Minister or the Board.

(6) In the performance of his or her duties, the Chief Executive Officer shall keep the Board fully informed of the affairs of the Commission and shall consult the Board from time to time, as may be necessary.

(7) The Chief Executive Officer may delegate to the Secretary, any senior staff or any member of staff of the Commission, as he or she considers appropriate, the exercise of any powers which he or she is authorised to exercise under this Act.

(8) The Minister may, after consultation with the Board, terminate the appointment of the Chief Executive Officer –

(a) if the Chief Executive Officer conducts himself or herself in a manner that is detrimental to the objective of, or the proper performance of the functions of the Commission; or

(b) if the Chief Executive Officer has been found to be physically or mentally unable to perform his or her duties efficiently, and a medical doctor has issued a certificate to that effect.

(9) The Chief Executive Officer may resign from his or her office by giving 30 days' notice of his or her intention to resign from office, in writing, to the Minister.

Secretary to Board

26. (1) The Board shall, on the recommendation of the Chief Executive Officer appoint a Secretary to the Board, on such terms and conditions as may be specified in the instrument of appointment.

(2) The Secretary shall, in addition to any function that may be assigned to him or her by the Board or the Chief Executive Officer, be responsible for –

(a) taking minutes of the meetings of the Board;

(b) keeping records of all decisions of the Board; and

(c) keeping records of legal transactions of the Commission.

(3) The Secretary shall, unless the Board otherwise directs, in writing, giving the circumstances leading to its decision, attend all meetings of the Board but shall not have a right to vote on any matter before the Board.

(4) In the performance of his or her duties, the Secretary shall be accountable to the Chief Executive Officer.

(5) In the absence of the Secretary, the Chief Executive Officer may appoint any senior member of staff of the authority to perform the functions of the Secretary until the Secretary resumes office or the vacancy is filled, as the case may be.

Appointment of senior and other staff of Commission

27. (1) The Board shall, on the recommendation of the Chief Executive Officer, appoint the senior staff of the Commission.

(2) The senior staff shall, under the direction of the Chief Executive Officer, assist the Chief Executive Officer in the proper administration and management of the functions and affairs of the Commission, in accordance with the policies laid down by the Board.

(3) The Chief Executive Officer shall appoint such other staff as may be necessary for the proper discharge of the functions of the Commission.

(4) The terms and conditions of employment of staff of the Commission shall be as determined by the Board, in consultation with the Minister.

PART VI – *Financial Provisions*

Funds of Commission

28. (1) The funds of the Commission shall consist of –

(a) such monies as may be appropriated by the National Assembly for the purposes of the Commission;

(b) such grants and donations as the Commission may receive;

(c) such fees as may be charged for services rendered by the Commission;

(d) the fees that may be charged by the Commission, for licences under this Act; and

(e) any income that the Commission may receive from investments.

(2) The Commission shall use the revenues acquired under subsection (1) to meet the costs incurred for its operations and shall use any surplus accrued for such purposes as it may determine, with the approval of the Minister.

Strategic and annual plan

29. (1) The Commission shall submit a five-year strategic plan to the Minister, for the Minister's approval, outlining –

(a) the goals of the Commission;

(b) the objectives of the Commission;

(c) the budget of the Commission; and

(d) any other matter which the Minister may direct for that five- year period.

(2) The Commission shall, at least three months before the beginning of each year, submit an annual plan to the Minister, for approval outlining –

(a) the goals of the Commission;

(b) the objectives of the Commission;

(c) the budget of the Commission; and

(d) any other matter which the Minister may direct for that financial year.

Financial year

30. The financial year of the Commission shall be a period of 12 months, beginning on the 1st April of each year and ending on the 31st March of the subsequent year.

Accounts and audit

31. (1) The Commission shall keep and maintain proper accounts and records of accounts in respect of every financial year relating to its assets, liabilities, income and

expenditure, and shall prepare, in each financial year, a statement of such accounts.

(2) The accounts of the Commission in respect of each financial year shall, within three months of the end of the financial year, be audited by an auditor appointed by the Board.

(3) The auditor shall report in respect of the accounts for each financial year, in addition to any other matter on which the auditor deems it pertinent to comment on, whether or not –

(a) the auditor has received all the information and explanation which, to the best of the auditor's knowledge and belief, were necessary for the performance of the auditor's duties;

(b) the accounts and related records of the Commission have been properly kept;

(c) the Commission has complied with all the financial provisions of this Act with which it is its duty to comply with; and

(d) the statement of accounts prepared by the Commission was prepared on a basis consistent with that of the preceding year and represents a true and fair view of the transactions and financial affairs of the Commission.

(4) The auditor's report and a copy of the audited accounts shall, within 14 days of completion, be forwarded to the Commission by the auditor.

Pension and other funds

32. (1) The Commission may, out of its revenues, establish and maintain such pension, superannuation, provident or other funds as it may consider desirable or necessary for the payment of benefits or other allowances on the death, sickness, injury, superannuation, resignation, retirement or discharge of its staff and may make rules providing for the payment of money out of its revenues to such funds and providing for contributions to such funds by its staff.

(2) The Commission may contract with insurance companies or such other bodies as may be appropriate for the maintenance and administration of the funds authorised under subsection (1).

Annual report

33. (1) The Commission shall, within a period of six months after the financial year or within such longer period as the Minister may approve, submit, to the Minister, a comprehensive report of its operations during that year, together with the auditor's report and the audited accounts as provided for in section 31 and the report shall be published in such manner as the Minister may require.

(2) The Minister shall lay the annual report of the Commission in Parliament, within three months of its receipt.

PART VII – *Licensing of Cybersecurity Providers*

Licensable cybersecurity services

34. For the purposes of this Act, the following are cybersecurity services that may be licensed in terms of the Act –

(a) penetration testing;

(b) security operations centre;

(c) information system service;

(d) information security risk assessment;

(e) vulnerability assessment;

(f) incident response;

(g) cyber audit;

(h) red teaming; or

(i) such other services as may be prescribed.

Licensing of cybersecurity providers

35. (1) A person shall not provide a cybersecurity service, unless that person obtains a licence issued by the Commission, in accordance with this Act.

(2) A person who seeks to provide a cybersecurity service shall application to the Commission in such manner and form as may be prescribed and, such applications shall be accompanied by –

(a) such fee, as may be prescribed; and

(b) such supporting documentation, as may be prescribed.

(3) The Commission shall within 14 days of receipt of an application under subsection (1), acknowledge receipt of the application.

(4) A person who contravenes the provisions of subsection (1) commits an offence and is liable to a fine not exceeding P100 000, or to imprisonment for a term not exceeding two years, or to both, and in the case of a company, to a fine not exceeding 10 per cent of its annual turnover.

Grant of licence

36. (1) The Commission shall, where the Commission approves an application under section 35, grant the applicant with a licence in such manner and form, as may be prescribed and upon payment of such fee, as may be prescribed.

(2) A licence granted by the Commission shall be subject to such terms and conditions, as may be prescribed.

(3) Where the Commission refuses to grant a licence, the Commission shall communicate such refusal, in writing, within 14 days, giving reason for such refusal.

(4) A licensed cybersecurity service provider who uses a licence granted in terms of this section for a purpose other than that for which the licence was granted, commits an offence and is liable to a fine not exceeding P200 000 or to imprisonment for a term not exceeding two years, or to both, and in the case of a company, to a fine not exceeding 10 per cent of its annual turnover.

(5) A licence granted in terms of this Act shall expire in accordance with such conditions, as may be prescribed.

Renewal of licence

37. (1) A licensed cybersecurity service provider that intends to renew a licence granted to the service provider in terms of section 36 shall, not less than three months before expiry of the licence, apply for renewal of the licence in such manner and form, as may be prescribed, and upon payment of such fee, as may be prescribed.

(2) The Commission shall renew the licence, if the cybersecurity service provider remains in compliance with the conditions of the licence specified in the licence.

(3) A licence renewed under this section shall be valid for such period, as may be specified in the licence.

(4) A cybersecurity service provider who applies for the renewal of a licence later than the period specified in subsection (1), shall pay such penalty fee for the late application, as may be prescribed.

Assessment of application for licence

38. (1) The Commission shall, within such period as may be prescribed, acknowledge in writing, receipt of the application for a licence in terms of section 35.

(2) In assessing an application under this Act, the Commission shall consider –

(a) whether the grant or renewal of a licence will bring any benefits to the national economy; and

(b) whether the applicant can provide the service in respect of which the licence or renewal application is made, in a sustainable manner.

(3) If, after receipt of the application, the Commission is of the opinion that it requires further information to assess the application, the Commission may within such period as may be prescribed, and by written notice, request for further information from the applicant or third parties, as may be identified by the Commission, and the notice shall –

(a) specify the information required from the applicant;

(b) specify the time within which the information or comments shall be submitted to the Commission; and

(c) specify the date by which the Commission intends to make a final decision on the application.

(4) The Commission shall notify an applicant, in writing, of its decision, within such period as may be prescribed, and where the Commission decides not to grant the licence, state the reasons in such notice.

Variation of licence

39. A licensee may, at any time during the validity of the licence, apply to the Commission for a variation of the licence in such manner and form, as may be prescribed, and upon payment of such fee, as may be prescribed.

Non-transferability of licence

40. (1) A licensee shall not transfer a licence granted under this Act to another person.

(2) A licensee who transfers a licence contrary to subsection (1), commits an offence and is liable to a fine not exceeding P100 000, or to imprisonment for a term not exceeding two years, or to both, and in the case of a company, to a fine not exceeding 10 per cent of its annual turnover.

Suspension of licence

41. (1) The Commission may suspend a licence issued under this Act for a period of not more than six months where –

(a) the licensee fails to renew the licence not later than one month before the expiration of the licence;

(b) the licensee fails to comply with a condition specified in the licence; or

(c) the Commission deems it necessary for the security of the public peace or for public safety to suspend the license.

(2) The Commission shall, before exercising the power of suspension under this section –

(a) give the licensee 30 days' notice, in writing, of the intention to do so; and

(b) specify in the notice the grounds on which the Commission intends to suspend the licence.

(3) Where the Commission decides to suspend a licence, the Commission shall give the licensee the opportunity –

(a) to submit to the Commission, within the time specified by the Commission, a written statement of objections, if any, to the suspension of the licence; and

(b) to remedy, within the time specified by the Commission, the breach which has occasioned the decision to suspend the licence.

(4) The Commission shall, within 14 days of the suspension of a licence, notify the cybersecurity service provider concerned of the suspension.

Revocation of licence

42. (1) The Commission may revoke a licence granted under this Act –

(a) where a licensee contravenes the provisions of this Act;

(b) where the licensee has ceased to carry on the business for which the licensee is licensed;

(c) where the licensee has been convicted in Botswana or elsewhere of any offence involving fraud, dishonesty or moral turpitude, cybercrime or breach of privacy laws;

(d) where the licensee demonstrates a history of repeated or continuous significant deviations from the terms and conditions of the licensee's licence, that represent a breakdown of process controls, rather than isolated incidents; or

(e) where the licensee is liquidated or has been declared insolvent by a court.

(2) Where the Commission decides to revoke the licence of a cybersecurity service provider in terms of this section, the Commission shall cause Notice of such revocation to be published in the *Gazette*.

PART VIII – *Critical Information and Critical National Information Infrastructure*

Designation of critical information and critical national information infrastructure

43. (1) The Commission shall, by Notice in the *Gazette*, designate an information or information infrastructure relevant to a critical sector as a critical information or critical information infrastructure.

(2) Where an information or information infrastructure is designated as critical under subsection (1), a controller shall comply with such baseline security requirements, as may be prescribed.

Categories of critical information and critical national information infrastructure

44. (1) The Minister may prescribe the categories of critical information and critical national information infrastructure.

(2) The Commission shall, when categorising critical information or critical national information infrastructure under subsection (1), consider the following–

(a) the scale of distribution of the impact of any disruption on the critical information or critical national information infrastructure;

(b) time criticality in relation to recovery time objective and recovery point objective in connection with any disruption on the critical information or critical national information infrastructure;

(c) the cyber dependence of the critical information or critical national information infrastructure; and

(d) any other factors that the Commission may consider necessary.

(3) The Commission shall issue guidelines setting out the requirements applicable to the different categories of critical information and critical national information infrastructure.

Access to critical information or critical national information infrastructure

45. (1) A person shall not without authorisation –

(a) secure access; or

(b) attempt to secure access,

to an information or information infrastructure designated as a critical information or critical national information infrastructure.

(2) A person who contravenes the provisions of subsection (1), commits an offence and is liable to a fine of not exceeding P500 000 or imprisonment to a term not exceeding five years, or to both.

Registration of critical information and critical national information infrastructure

46. (1) A controller shall register critical information or critical national information infrastructure with the Commission, within 30 days of the designation under section 43, in such manner and form, as may be prescribed.

(2) A controller who contravenes the provisions of subsection (1), commits an offence and is liable to pay to the Commission, an administrative penalty not exceeding P200 000.

Withdrawal of critical information and critical national information infrastructure

47. The Minister may, on the advice of the Commission and by Notice published in the *Gazette*, withdraw the designation of a critical information and critical national information infrastructure at any time, if the Minister considers that information or information infrastructure no longer satisfies the criteria of a critical information or critical national information infrastructure.

Hosting of critical information and critical national information infrastructure

48. (1) A controller shall host critical information or critical national information infrastructure within Botswana, in such manner and form, as may be prescribed.

(2) Notwithstanding the provisions of subsection (1), the Commission may authorise a controller to host critical information or critical national information infrastructure outside Botswana.

(3) The Commission shall, before authorising the hosting of critical information or critical national information infrastructure outside Botswana under subsection (2), consider the following factors –

(a) the categories of critical information or critical information infrastructure referred to under section 44;

(b) the justification of hosting the critical information or critical national information infrastructure outside Botswana;

(c) the nature of business operations;

(d) the need to maintain national cyber resilience;

(e) whether the proposed hosting country has a legal framework on cybersecurity that would facilitate the regulation of the critical information or critical national information infrastructure;

(f) whether the critical information or critical national information infrastructure belongs to a public body;

(g) national security;

(h) the categories of personal data required to be stored within Botswana in terms of the Data Protection Act; and

(i) any other factors, as may be prescribed.

(4) Where the purpose for which critical information was collected expires or the controller ceases to exist, that critical information shall be surrendered to the Commission.

(5) Where critical information surrendered under subsection (4) is personal data, that data shall be dealt with in accordance with the Data Protection Act.

Change in ownership of critical information and critical national information infrastructure

49. (1) A controller shall notify the Commission of any change of ownership of critical information or critical national information infrastructure within seven days of the change, in such manner and form, as may be prescribed.

(2) A person who contravenes the provisions of subsection (1), commits an offence and is liable to a fine not exceeding P200 000 or to imprisonment for a term not exceeding three years, or to both.

Auditing of critical information and critical national information infrastructure

50. (1) The Commission shall carry out a periodic audit and inspection on critical information and critical information infrastructure to ensure compliance with the provisions of this Act.

(2) The Minister may prescribe the minimum standards for prohibitions in respect of the general management of critical information and critical information infrastructure, that the Minister considers necessary for the protection of national security.

Non-compliance to audit requirements

51. (1) The Commission shall, notify the controller in writing, where an audit conducted under section 50 does not comply with the prescribed standards under this Act, stating the –

(a) findings of the audit;

(b) action required to remedy the non-compliance; and

(c) period within which the controller shall take remedial action.

(2) A controller who fails to take any remedial action within the period stipulated under subsection (1), commits an offence and is liable to a fine not exceeding P100 000 or to imprisonment for a term not exceeding two years, or to both.

Duty to report cybersecurity incidents in respect of critical information and critical national information infrastructure

52. (1) A controller shall immediately notify the Commission of a perceived or actual occurrence of any of the following cybersecurity incidences, in such manner that the Commission may determine –

(a) a cybersecurity incident in respect of critical information or critical national information infrastructure;

(b) a cybersecurity incident in respect of any computer or computer system under the controller's control that is interconnected or

communicates with critical information or critical national information infrastructure; or

(c) any other type of cybersecurity incident in respect of critical information or critical national information infrastructure that the Commission may specify to the controller.

(2) Notwithstanding the provisions of subsection (1), a controller shall submit a preliminary cybersecurity incident report to the Commission within 12 hours of notifying the Commission of the perceived or actual occurrence of the incident under that subsection, in such manner and form, as may be prescribed.

(3) A controller shall, as soon as the cybersecurity incident is resolved, submit to the Commission a detailed cybersecurity incident report.

(4) A controller shall establish mechanisms and processes, in accordance with such cybersecurity standards as may be prescribed, for the detection of a cybersecurity threat in respect of critical information or critical national information infrastructure.

(5) A controller who contravenes the provisions of this section, commits an offence and is liable to a fine not exceeding P100 000 or to imprisonment for a term not exceeding two years, or to both.

PART IX – *Botswana Computer Security Incident Response Team*

Appointment of Botswana Computer Security Incident Response Team

53. (1) The Minister shall appoint the Botswana Computer Security Incident Response Team.

(2) The Botswana Computer Security Incident Response Team shall promote cybersecurity and cyber resilience and protect the critical information and critical national information infrastructure.

(3) Without derogating from the generality of subsection (2), the Botswana Computer Security Incident Response Team shall –

(a) act as Botswana's single point of contact for cybersecurity incident reporting, coordination

and international cooperation on cybersecurity threats and incidents;

(b) monitor cybersecurity threats and incidents;

(c) provide threat intelligence on local and international cybersecurity incidents;

(d) disseminate and share critical information such as early warning, alerts, announcements and security advisory;

(e) provide computer security incident response support at national level;

(f) raise public education and awareness in the field of cybersecurity;

(g) provide incident response and management services in a coordinated manner through established industry standard policies and procedures to manage threats associated with cyber incidents;

(h) participate in regional and international computer emergency response team groups;

(i) establish a cybersecurity incident monitoring and response system; and

(j) assess and coordinate the work of sectoral cyber incident response teams within the public and private sector.

(4) The Botswana Computer Security Incident Response Team shall submit to the Commission, a monthly report covering the operations of the Botswana Computer Security Incident Response Team.

(5) The Botswana Computer Security Incident Response Team shall implement response and recovery actions, without the prior approval of the Commission, where the Response Team -

(a) deems that the cyber incident warrants such and the Response Team wants to avoid the incident to exacerbate; and

(b) follows the standards and protocols laid down by the Commission for such decision-making.

(6) The Botswana Computer Security Incident Response Team shall, as soon as it has resolved the cyber incident, submit an incidence report to the Commission.

Sectoral cyber incident response teams

54. (1) The Commission shall appoint such sectoral cyber incident response teams, as it may determine.

(2) The Commission shall, in appointing a sectoral cyber incident response team, take into account –

(a) the needs and criticality of a sector;

(b) developments in respect of cybersecurity in Botswana; and

(c) any other factors that the Commission may determine.

(3) A sectoral cyber incident response team shall –

(a) collect and collate cybersecurity incidents; and

(b) coordinate responses to cybersecurity incidents within its specific sector.

(4) The establishment and operational costs of a sectoral cyber incident response team, shall be borne by the sector concerned.

(5) The Commission shall oversee the operations of a sectoral cyber incident response team constituted under this section.

(6) A sectoral cyber incident response team shall submit a report on the operations of that sectoral cyber incident response team to the Commission, in such manner as may be determined by the Commission.

Duty to report cybersecurity incident

55. (1) A sectoral cyber incident response team shall report a cybersecurity incident to the Commission, through the Botswana Computer Security Incident Response Team.

(2) A licensee under this Act shall, within the period determined by the Commission, submit to the Commission a report covering the operations of the licensee, including a report of a cybersecurity incident.

(3) The Commission shall establish a cybersecurity incident reporting and information sharing platform to enable the Botswana Computer Security Incident Response Team, a sectoral cyber incident response team, a licensee and any other relevant institution report a cybersecurity incident.

(4) The Commission shall, upon receipt of information in respect of a cybersecurity incident, circulate the information to the Botswana Computer Security Incident Response Team, a sectoral cyber incident response team, a licensee and any other relevant institution.

(5) A person in charge of an institution shall report a cybersecurity incident to the relevant sectoral cyber incident response team or the Botswana Computer Security Incident Response Team, within a period of not more than 24 hours after the incident is detected.

(6) A person who contravenes the provisions of subsection (5) commits an offence and is liable to a fine not exceeding P250 000 or to imprisonment for a term not exceeding three years, or to both.

Cybersecurity incident monitoring and response system

56. (1) The Commission shall establish a cybersecurity incident monitoring and response system.

(2) The Commission shall implement the relevant technical measures to ensure an effective cybersecurity incident monitoring and response system.

(3) For the purposes of subsection (3), the Commission shall intercept, disable or take-down a digital technology, digital service or a digital product that is likely to undermine the cybersecurity of Botswana.

Early warning system

57. (1) The Commission shall establish an early warning system in respect of human initiated risks that are likely to undermine the cybersecurity of Botswana.

(2) The Commission shall implement the early warning system to advise the public on cybersecurity matters.

PART X – *Interception of Communications*

Establishment of Central Monitoring and Coordination Centre

58. (1) There is hereby established the Central Monitoring and Coordination Centre.

(2) The Central Monitoring and Coordination Centre shall be the sole facility through which authorised interceptions in terms of this Act, shall be effected and all the intercepted communication and call related information of any particular interception target forwarded.

(3) The Central Monitoring and Coordination Centre shall be managed, controlled and operated by the Department responsible for Government communications, in liaison with the Commission.

Prohibition of interception of communication

59. (1) A person shall not knowingly and without lawful authority –

(a) intercept, attempt to intercept or procure another person to intercept or attempt to intercept any communication; or

(b) use, attempt to use or procure another person to use or attempt to use any electronic, software, mechanical or other device to intercept a communication.

(2) A person who contravenes the provisions of subsection (1) commits an offence and is liable to a fine not exceeding P1 000 000 or to imprisonment for a term not exceeding 10 years, or to both.

Prohibition of use, manufacture or possession of interception device

60. (1) A person shall not use, manufacture or possess an interception device without authorisation.

(2) A person who contravenes the provisions of subsection (1), commits an offence and is liable to a fine

not exceeding P1 000 000 or to imprisonment for a term not exceeding 10 years, or to both.

(3) Subsection (1) does not apply to the use or possession of an interception device by an electronic communications service provider, the Commission or any other person authorised by the Department responsible for Government communications, where that interception device is used –

(a) for the operation, maintenance and testing of an electronic communications service;

(b) to protect the rights or property of the electronic communications service provider or the users of the electronic communications service from abuse of that service or any other unlawful use of the service;

(c) to record that a communication was initiated or completed in order to protect –

(i) an electronic communications service provider in the completion of a communication, or

(ii) a user of an electronic communications service from fraudulent, unlawful or abusive use of that electronic communications service;

(d) pursuant to an interception of communication order; or

(e) for research purposes where consent of a user of the electronic communications service has been obtained.

(4) Notwithstanding the provisions of subsection (3), an institution or person referred to under that subsection shall keep a record of the interception conducted by that institution or person using an interception device registered under section 60 and submit a copy of the record to the Central Monitoring and Coordination Centre.

(5) A person who contravenes the provisions of subsection (4), commits an offence and is liable to a fine not exceeding P200 000 or to imprisonment for a term not exceeding two years, or to both.

(6) In this section, unless the context otherwise requires, "interception device" means a device designed or modified to intercept cellular communications, manipulate cellular network protocols, intercept satellite communications, intercept radio communications or capture mobile device identifiers.

Registration of interception device

61. (1) A person authorised to use or possess an interception device under section 59 shall apply to the Commission, for the registration of the interception device in such manner and form as may be prescribed and upon payment of such fee as may prescribed.

(2) The Commission shall, within 14 days of receipt of the application under subsection (1), grant or reject the application.

(3) The Commission shall, where it –

(a) grants the application under subsection (2), grant the applicant with a certificate of registration in such manner and form as may be prescribed and on such terms and conditions that the Commission may determine; or

(b) rejects the application under subsection (2), inform the applicant in writing, stating the reasons for the rejection.

(4) A certificate of registration granted under subsection (3), shall be valid for such period, as may be prescribed.

(5) A person who wishes to renew a certificate of registration may, not less than three months before the expiry of the certificate of registration, apply to the Commission for a renewal of the certificate of registration in such manner and form as may be prescribed and upon payment of such fee, as may be prescribed.

Variation of certificate of registration

62. A holder of a certificate of registration may, at any time during the validity of the certificate of registration, apply to the Commission for a variation of the certificate of registration, in such manner and form as may be prescribed, and upon payment of such fee as may be prescribed.

Non-transferability of certificate of registration

63. A certificate of registration issued under this Part shall not be transferred to a third party.

Surrender of certificate of registration

64. (1) The holder of a certificate of registration shall, where the holder does not intend to continue using or possessing an interception device for the purpose to which the certificate of registration relates, surrender the certificate of registration to the Commission.

(2) Where a certificate of registration has been surrendered under subsection (1), the holder of a certificate of registration shall surrender the interception device to the Commission.

(3) The Commission shall determine the manner in which an interception device surrendered under subsection (2) shall be disposed of.

Suspension or cancellation of certificate of registration

65. (1) The Commission shall suspend or cancel a certificate of registration if the holder –

(a) obtained the certificate through fraud, misrepresentation or concealment of a material fact; or

(b) contravenes any provision of this Act or terms and conditions of the certificate.

(2) The Commission shall, before suspending or cancelling the certificate of registration in accordance with subsection (1), notify the holder of the Commission's intention to suspend or cancel the certificate and shall –

(a) give reasons for the intended suspension or cancellation; and

(b) require the holder of the certificate to show cause, within a period of not more than 14 days,

why the certificate should not be suspended or cancelled.

(3) The Commission shall, in making a final determination on the suspension or cancellation of a certificate of registration, consider the submissions made by the holder of the certificate under subsection (2) *(b)*.

(4) The Commission shall not suspend or cancel a certificate of registration under this section if the holder of the certificate takes remedial measures to the satisfaction of the Commission, within the period specified under subsection (2) *(b)*.

(5) The Commission may suspend or cancel a certificate of registration if the holder of the certificate, after being notified under subsection (2), fails to show cause or does not take any remedial measures, to the satisfaction of the Commission, within the time specified in that subsection.

(6) The holder of a certificate of registration shall, where the certificate is cancelled in accordance with subsection (5), surrender the certificate to the Commission.

Lawful interceptions

66. (1) Subject to the provisions of subsection (2), a law enforcement officer may, where the officer has reasonable grounds to believe that an offence has been committed, is likely to be committed, or is being committed, apply *ex-parte* to a court for an interception of communication order.

(2) A court to whom an application is made under subsection (1), may issue an interception of communication order –

(a) requiring an electronic communications service provider to intercept and retain specified communication or communications of a specified description received or transmitted, or about to be received or transmitted by that electronic communications service provider;

(b) authorising the law enforcement officer, through the Central Monitoring and Coordination Centre, to enter specified

premises and to install on such premises any device for the interception and retention of communication or communications of a specified description and to remove and retain such device;

(c) requiring any person to furnish the law enforcement officer with information, facilities and assistance as the judge considers necessary for the purpose of the installation of the interception device; or

(d) imposing terms and conditions for the protection of interests of persons specified in the interception of communication order or any third parties or to facilitate investigations.

(3) A court may grant an order under subsection (2), where the court is satisfied that there are reasonable grounds to believe that the communication relates to the –

(a) commission of an offence under this Act or any other written law; or

(b) whereabouts of a person suspected by a law enforcement officer to have committed an offence is contained in that communication.

(4) An order referred to under subsection (2), shall be valid for a period of three months and may, on application by a law enforcement officer, be renewed for a further period not exceeding three months.

(5) A law enforcement officer shall on receipt of an order under subsection (2), serve the order on an electronic communications service provider.

(6) An electronic communications service provider shall, within 24 hours of receipt of an order issued under subsection (2), route duplicate signals of an indirect communication to the Central Monitoring and Coordination Centre.

(7) The Central Monitoring and Coordination Centre shall make available to a law enforcement officer, the duplicate signals of an indirect communication routed

to the Centre under subsection (6).

(8) Information shall be admissible in proceedings for an offence under this Act, as evidence of the truth where that information is contained in a communication that is intercepted and retained -

(a) pursuant to an interception of communication order under subsection (2); or

(b) in a foreign country in accordance with the law of that foreign country and certified by a court of that foreign country to have been so intercepted and retained.

(9) An action shall not lie in any court against an electronic communications service provider, any law enforcement officer, employee or agent of the electronic communications service provider, for providing information, facilities or assistance in accordance with the terms of an interception of communication order under subsection (2).

Interception of communication to prevent bodily harm, loss of life or damage to property

67. (1) A law enforcement officer may orally request an electronic communications service provider to intercept any communication and to route the duplicate signals of the indirect communication specified in that request to the Central Monitoring and Coordination Centre where the law enforcement officer has reasonable grounds to believe that –

(a) a person who is party to any communication -

(i) has caused, or may cause, the infliction of bodily harm to another person,

(ii) threatens, or has threatened, to cause the infliction of bodily harm to another person,

(iii) threatens, or has threatened, to kill oneself or another person, or to perform an act which may endanger that person's own life or that of another person,

(iv) has caused or may cause damage to property; or

(v) has caused or may cause financial loss to banks, financial institutions, account holders or beneficiaries of funds being remitted or received by such account holders or beneficiaries;

(b) it is not reasonably practical to make an application under section 66 for an interception of communication order as the delay to intercept a specified communication would result in the infliction of bodily harm, the death of another person or damage to property; or

(c) the sole purpose of the interception is to prevent bodily harm to, or loss of life of, any person or damage to property.

(2) An electronic communications service provider shall, on receipt of a request made under subsection (1) by a law enforcement officer, route the duplicate signals of the indirect communication to the Central Monitoring and Coordination Centre.

(3) A law enforcement officer who makes a request to an electronic communications service provider under subsection (1) shall, within 24 hours after making that request, furnish the electronic communications service provider with a written confirmation of the request setting out the information given by that law enforcement officer.

(4) A law enforcement officer who makes a request for interception under subsection (1), shall within two days, after the interception of the communication, submit to a court –

(a) a copy of the written confirmation referred to in subsection (3);

(b) an affidavit setting out the results and information obtained from that interception;

(c) a recording of the communication that has been obtained through that interception; and

(d) a full or partial transcript of the recording of the communication and any notes made by the law enforcement officer.

(5) An electronic communications service provider who, in accordance with subsection (2), routes duplicate signals of indirect communications to the Central Monitoring and Coordination Centre shall, as soon as practicable, submit an affidavit to a court setting out the steps taken by that electronic communications service provider in giving effect to the request and the results obtained from such steps.

(6) A court may make an order as the court considers appropriate in relation to the electronic communications service provider, the person whose communication has been intercepted or the law enforcement officer, where a court, on receipt of a written confirmation and affidavit under this section, determines that the interception was effected or used for purposes contrary, or in contravention of, the provisions of this Act or any other law.

Interception of communication for purposes of determining location

68. (1) Where a person is a party to a communication and that person, as a result of information received from another party to the communication, has reasonable grounds to believe that an emergency exists and the location of that other party is unknown, that person shall, if that person is –

(a) a law enforcement officer, and has reasonable ground to believe that determination of the location of the other party is likely to be of assistance in dealing with the emergency, request an electronic communications service provider to –

(i) intercept that communication for purposes of determining that other party's location, or

(ii) determine the location of the sender; or

(b) not a law enforcement officer, inform any law enforcement officer of the emergency.

(2) Subject to this Part, the provisions relating to interception of communication under section 6shall apply to the interception of communication for purposes of determining a geolocation with necessary modifications.

(3) An emergency for purposes of this section exists if –

(a) there is potential or actual threat to national security;

(b) there is potential or actual threat to public safety;

(c) the life of another person is likely to be endangered or is endangered; or

(d) property is likely to be damaged, is being damaged or has been damaged.

Prohibition of access and use of intercepted communication

69. (1) An electronic communications service provider who intercepts a communication pursuant to an interception of communication order shall not use the communication in any manner other than in accordance with the provisions of this Act.

(2) A person who, without authorisation –

(a) accesses the contents of any intercepted communication; or

(b) uses, or attempts to use, the contents of any intercepted communication,

commits an offence and is liable to a fine not exceeding P1 000 000 or to imprisonment for a term not exceeding 10 years, or to both.

Disclosure of intercepted communication by law enforcement officer

70. (1) A law enforcement officer who obtains information pursuant to an interception of communication order may disclose the communication to another law enforcement officer where the disclosure is necessary for the determination of the commission of an offence or the whereabouts of a person suspected to have committed an offence.

(2) Where a law enforcement officer, in the performance of any functions under this Act, obtains information pursuant to an interception of communications order relating to the commission of an offence under any other law, the law enforcement officer shall disclose or use the communication in accordance with the provisions of this Act or that other law.

Assistance by electronic communications service provider

71. (1) An electronic communications service provider shall –

(a) use an electronic communication system that is technically capable of supporting interception in accordance with this Act;

(b) install hardware and software facilities and devices to enable interception of communications when required by a law enforcement officer or under a court order;

(c) provide services that are capable of rendering real time and full-time monitoring facilities for interception of communications;

(d) provide all call-related information in real time or as soon as possible on call termination;

(e) provide one or more interfaces from which an intercepted communication shall be transmitted to the Central Monitoring and Coordination Centre;

(f) transmit intercepted communication to the Central Monitoring and Coordination Centre through fixed or switched connections; and

(g) provide access to all intercepted subjects operating temporarily or permanently within the service provider's communications systems, and where the interception subject is using features to divert calls to other service providers or terminal equipment, access to such other service providers or equipment.

(2) An electronic communications service provider who contravenes subsection (1), commits an offence and is

liable to an administrative penalty of P1000 000, to be imposed by the Commission.

PART XI – *International Cooperation*

International cooperation
Cap. 08:04
Cap. 09:03

72. (1) Subject to the provisions of the Mutual Assistance in Criminal Matters Act and the Extradition Act, the Commission shall in the performance of its functions promote the security of the cyberspace through international cooperation.

(2) The Commission shall identify and ensure that it cooperates with private bodies, organisations and Government entities involved in cybersecurity matters, within and outside the Botswana.

(3) For the purposes of international cooperation, the Botswana Computer Security Incident Response Team shall be the 24/7 contact point to tackle computer related crime and cybercrimes.

(4) The Botswana Computer Security Incident Response Team shall provide assistance, in respect of –

(a) technical advice to other contact points;

(b) the expeditious preservation of data and evidence;

(c) information on the detection of suspects and related matters;

(d) the immediate transmission of legal requests in accordance applicable laws and treaties; and

(e) any other matter related to paragraphs *(a)* to *(d)*.

(5) Subject to the Mutual Assistance in Criminal Matters Act, the Commission may enter into an agreement with a foreign country or international body relating to the provision of mutual assistance and cooperation in the investigation and prosecution of –

(a) an offence committed under this Act;

(b) any offence under the laws of Botswana which is or was committed by the use of a device or computer related article; or

(c) an offence substantially similar to an offence recognised in Botswana which is or was committed by the use of a device or computer related article, in the foreign country.

PART XII – *Miscellaneous Provisions*

Cybersecurity risk register

73. (1) The Commission shall establish and maintain an electronic cybersecurity risk register, in such and manner and form, as may be prescribed.

(2) The register shall contain details of the –

(a) personal data of the owners of critical information and critical national information infrastructure;

(b) identified and potential cybersecurity risks; and

(c) level of impact of risk.

(3) Information contained in the register shall not be disclosed to any person other than an employee of the Commission, who is responsible for keeping the register.

(4) Notwithstanding the provisions of subsection (3), the Commission may disclose information contained in the register, if required by law.

(5) Nothing in this law shall preclude the Commission from pleading in proceedings relating to information held in the custody or records of the Commission that the production or disclosure of that information may be –

(a) prejudicial to the security of the State; or

(b) injurious to the public interest.

Request for information

74. (1) The Commission may, in writing, direct –

(a) a person who owns or operates a critical information or critical information infrastructure;

(b) a designated sectoral computer emergency response team; or

(c) a cybersecurity service provider,

to provide the Commission with relevant information for the purpose of ensuring the cybersecurity of Botswana.

(2) A person who fails to provide information in terms of subsection (1), commits an offence and is liable to pay to the Commission an administrative penalty of P250 000.

(3) For a second or subsequent offence, the person is liable to pay to the Commission, an administrative penalty of P500 000.

Exemption from liability of officers of Commission and members of Board

75. A member of the Board and an officer of the Commission shall be exempt from liability for any action taken or omission made in good faith, in the performance of the functions of the Commission.

Appeals

76. A person aggrieved by the decision of the Commission may within 30 days of the decision, appeal to the High Court.

Codes of practice and standards

77. (1) The Commission may issue codes of practice and standards as are necessary for the better carrying out of the provisions of this Act.

(2) The Commission shall publish the codes of practice and standards on the Commission's website, in a daily newspaper of general circulation in Botswana, the *Gazette* or any other electronic platform.

(3) The codes of practice and standards issued by the Commission under this Act shall bind all persons regulated under this Act and may include codes of practice and standards relating to –

(a) cyber incident reporting;

(b) cybersecurity;

(c) cyber resilience;

(d) critical information and critical national information infrastructure risk assessments;

(e) critical information and critical national information infrastructure data retention;

(f) cyber incident management exercises; and

(g) the identification of critical information infrastructure.

Exemptions

78. (1) The Commission may, by Notice published in the *Gazette*, exempt a person or class of persons, for a limited or unlimited period of time, from the requirements of the provisions of Parts VII and VIII.

(2) The Commission may, under any circumstances as it may determine, revoke the exempted granted to any person in terms of subsection (1).

(3) The Commission may where it revokes its decision under subsection (2), publish the decision by Notice in the *Gazette*.

Regulations

79. (1) The Minister may, after consultation with the Commission, make regulations for the better carrying out of the provisions of this Act.

(2) Without prejudice to the generality of the powers conferred by subsection (1), the regulations may provide for–

(a) the form and manner of making applications for licences under this Act, the renewal of licences or variation of the licences, the duration of the licences granted under this Act, conditions under which licenses under this Act may be granted and the fees payable for such licences;

(b) the period for assessment of applications for licences;

(c) the manner and form of registration of critical information and critical national information infrastructure;

(d) the baseline requirements for critical information and critical national information infrastructure;

(e) categories of critical information and critical national information infrastructure;

(f) the form of notification to be given by a licensee where there is a change in the ownership of a critical information and critical national information infrastructure;

(g) categories of licences of cybersecurity services;

(h) manner of hosting of critical information and critical national information infrastructure;

(i) the factors to be considered for the hosting of critical information and critical national information infrastructure outside Botswana;

(j) the categories of cybersecurity services that may be licensed under this Act;

(k) the manner and form for the application for registration of an interception device; and

(l) provide for anything required to be prescribed under this Act.